

August 31, 2026
Dept. 9
Probate Tentative Rulings

5.	26PR0114	MATTER OF SAMANTHA A. HERNANDEZ SETTLEMENT TRUST
PETITION HEARING		

On July 9, 2026, Petitioner, Mia Ehsani ("Petitioner" or "Trustee"), filed a First and Current Account and Report of Trustee; Petition. Proof of Service of the notice of hearing was filed on July 24, 2026. No objection has been filed.

Petitioner seeks the following:

1. Notice of hearing of this Account, Report, and Petition has been given as required by law;
2. The Trust shall remain under the continuing jurisdiction and supervision of a Court of competent jurisdiction until further order of the Court;
3. The Court approves, allows, and settles the First and Current Account and Report of Mia Ehsani, as Trustee of the Samantha A. Hernandez Settlement Trust, for the period April 29, 2025 through February 28, 2026, inclusive, showing receipts, disbursements, and property on hand valued at \$254,444.75, consisting of \$8,485.99 in cash assets and \$245,958.76 in non-cash assets;
4. The Court ratifies, confirms, and approves all acts and transactions of Mia Ehsani, as Trustee of the Samantha A. Hernandez Settlement Trust set forth in the First Account and Report, or relating to the matters set forth in it;
5. The Court approves the continued payment to Evagelina Hernandez out of the Samantha A. Hernandez Settlement Trust in the amount of \$1,000.00 per month for her services as care provider, care manager, transportation provider, and home therapy provider;
6. The Court approves the payment of Trustee fees out of the assets of the Samantha A. Hernandez Settlement Trust to Trustee Mia Ehsani in the amount of \$3,629.33, and authorizes payment for the outstanding balance of \$2,473.45, for Trustee services rendered on behalf of the Trust during the account period;
7. The Court approves the continued payment of interim Trustee fees out of the assets of the Samantha A. Hernandez Settlement Trust to Trustee Mia Ehsani in the amount of \$200.00, payable monthly, for Trustee services rendered on behalf of the Trust;
8. The Trustee is allowed, authorized, and directed to pay the Law Office of Susan A. Katzen, P.C., in the amount of \$15,261.00 from the Trust assets for legal services provided during the account period;
9. The Trustee is allowed, authorized, and directed to pay the Law Office of Susan A. Katzen, P.C., in the amount of \$261.98 from the Trust assets for costs provided during the account period;

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10. The Trustee is allowed and authorized to pay interim attorney's fees to the Law Office of Susan A. Katzen, P.C. in the amount of \$500.00 per month for legal services rendered on behalf of the Trust, commencing as of June 30, 2026 and continuing for a period not to exceed twenty-four (24) months;
11. The Trustee is allowed and authorized to pay interim legal costs advanced by the Law Office of Susan A. Katzen, P.C. on behalf of the Trust;
12. The Court modifies Paragraph 7 of Attachment 13 set forth in the Los Angeles County Superior Court's Order Approving Minor's Compromise dated April 29, 2025 to state as follows: "The Court approves and authorizes the Trustee to disburse a total amount of \$1,055.00 per month from the Samantha A. Hernandez Settlement Trust for the Beneficiary's comfort, education, support, and maintenance expenses, including but not limited to, expenses for clothing, education, therapies, extracurricular activities, counseling, and medical copays, until further order of the Court;"
13. The Court modifies Paragraph 10 of Attachment 13 set forth in the Los Angeles County Superior Court's Order Approving Minor's Compromise dated April 29, 2025 to state as follows: "The Court approves and authorizes the Trustee to disburse from the Samantha A. Hernandez Settlement Trust an amount up to \$761.00 per month for the Beneficiary's one-third (1/3) share of household and transportation expenses, including but not limited to vehicle expenses, expenses for a comfort pet, and housekeeping expenses, until further order of the Court"; and
14. The liability of the Trustee's bond is decreased by \$19,572.00 for total bond in the amount of \$321,153.00.

TENTATIVE RULING #5:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.